

		about the individuals involved and their authority are insufficient to plead a claim for punitive damages even if the complaint sufficiently alleges a fraud cause of action to survive demurrer. The motion to strike is granted. The prayer for punitive damages is stricken from the Complaint. Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it within 15 days of service of notice of ruling. The Case Management Conference is continued to August 6, 2026 at 1:30 p.m. <i>Defendant FAC US, LLC to give notice.</i>
101	Zavala vs. Becker, 24-01387754	Defendants Karl W. Becker, Karl Mark Becker, Gabrielle Becker-Irvin, and Craig-Becker Irvin move to compel plaintiff Regina M. Zavala to appear for deposition within 10 days and for an order imposing monetary sanctions in favor of Defendants in the amount of \$2,917.50. The Court notes that Plaintiff appeared for her deposition on April 13, 2026. Thus, the motion to the extent it seeks an order compelling Plaintiff to appear within 10 days is DENIED. As to sanctions, Plaintiff argues that no monetary sanctions should be imposed because she acted with substantial justification or other circumstances make the imposition of monetary sanctions unjust given that there was a breakdown in the relationship between her and her prior counsel through no fault of her own. However, on October 22, 2025, Plaintiff's prior counsel appeared for her deposition and informed Defendants that he had advised Plaintiff numerous times about the deposition and received no response. (Declaration of Joanne K. Leighton, Exhibit H.) Plaintiff's prior counsel stated again in a November 20, 2025 email to defense counsel that Plaintiff was advised of the deposition by letter, email, and text message. (Id., Exhibit J.) Because Plaintiff failed to appear for her deposition on October 22, 2025 despite being advised numerous times of the deposition

		date, the Court finds that the imposition of monetary sanctions is warranted. Thus, Defendants' request for monetary sanctions against Plaintiff is GRANTED in the amount of \$1,500.00. Sanctions to be paid within 30 days. <i>Defendants to give notice.</i>
102	Douglas vs. Gordon Lane Healthcare, LLC, 23-01330147	Defendant, Sun Mar Management Services ("Sun Mar"), moves for an order staying and quashing the notice of deposition of Mike Oxford served by Plaintiffs Ellen Douglas, individual and as successor-in-interest to Bruce Douglas, Megan Douglas, and Cameron Douglas (collectively, "Plaintiffs"), as well as moves for a protective order as to the deposition of Mike Oxford. Defendant Sun Mar, contends that Mr. Oxford is the Chief Operating Officer of Defendant Sun Mar and is tantamount to an "apex" employee who has no personal, unique, or superior knowledge of any of the facts surrounding this lawsuit. Sun Mar asserts that the notice of deposition for Mr. Oxford should be stayed and quashed as Plaintiffs have prematurely noticed his deposition, and that the Court should issue a protective prevent the deposition of Mr. Oxford. Sun Mar asserts that good cause exists for a protective order as Plaintiffs improperly seek to take the deposition of Mr. Oxford without first seeking discovery regarding the knowledge and information possessed by Mr. Oxford through less intrusive discovery methods, and without satisfying the principles set forth in <i>Liberty Mutual Insurance Company v. Superior Court</i> (1992) 10 Cal.App.4th 1282, and that the depositions of all relevant caregivers and lower level employees of Defendant(s) must take place before Plaintiffs can be allowed to leap to the apex of the Defendant company to reach Mr. Oxford. Sun Mar further asserts that Plaintiffs have not and cannot make a showing that Mr. Oxford has any personal, unique, or superior knowledge of any of the facts surrounding this lawsuit. Plaintiffs contend that the gravamen of Plaintiffs' neglect claims concern operational decisions that were made by managing agents of Defendant Sun Mar during Bruce Douglas' admission to Defendants' facility;